File No.: EXP202315853
RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 1, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against IBERCAJA BANCO, S.A. (hereinafter, the respondent), through the Agreement that is transcribed:
<<
File No.: EXP202315853 (PS/00380/2024)
AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On September 17, 2023, Ms. A.A.A. (the claimant) filed a complaint with the Spanish Agency for Data Protection.
The complaint was directed against the entity IBERCAJA BANCO, S.A. (Ibercaja) with NIF: A99319030, (the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).
The complaint was based on the following points:
- That the contractual relationship with Ibercaja ended on February 23, 2022, following the cancellation of a mortgage contract, which was notarized.
- That nevertheless, she became aware that the financial entity accessed her existing personal data in the BADEXCUG EXPERIAN asset file on 47 occasions, from March 2022 to January 2023.
- That she sent an email to Ibercaja's Customer Service on March 29, 2023, to which the entity responded on May 29, 2023, informing her that they would proceed to block the data, although the accesses to the file had already occurred.

Along with the complaint, the following documentation was submitted:
- First page of the deed of sale, dated February 23, 2022, with the cancellation of the mortgage charge, in which the claimant is listed as one of the sellers.
- Certificate, dated February 23, 2022, issued by the representative of the respondent, certifying that the claimant is, along with other individuals, the holder of a mortgage loan, as well as:
“3. That the parties reached an agreement whereby the Debtors committed to the payment of the Loan Debt through the sale of the mortgaged property to the IBERCAJA group at market price, and IBERCAJA committed, once the sale was formalized and possession was delivered, to grant a payment letter and settlement of the Loan Debt. (…)
4. That the Debtors, in execution of the aforementioned, have transferred the mortgaged property to (…), a company in which IBERCAJA has a stake, for its market value, and IBERCAJA has granted a payment letter and total settlement of the debt owed by the Debtors, referred to in the first section, expressly waiving the right to exercise any new action in claim of the same and to desist, if applicable, from any actions that have been initiated against the Debtors, whether judicial or extrajudicial, in claim of the said debt.”
- Report from BADEXCUG, dated March 24, 2023, which includes all inquiries made by the respondent, from April 1, 2018, to January 8, 2023. This report details other debts recorded in the file at the request of IBERCAJA. However, it is noted that all of them were canceled prior to the events that led to the procedure:
o Date
identifier

subscriber
o (…)
o 27/02/2022 00:29
***NIF.1
IBERCAJA
o 27/02/2022 01:19
“
IBERCAJA
o (…)
o 17/07/2022 00:24
“
IBERCAJA
o 28/08/2022 00:31
“
IBERCAJA
o 28/08/2022 01:55
“
IBERCAJA
o 04/09/2022 00:20
“
IBERCAJA
o 04/09/2022 02:07
“
IBERCAJA
o 11/09/2022 00:24
“
IBERCAJA

o
(…)
o
25/12/2022 02:46
“
IBERCAJA
o
01/01/2023 00:32
“
IBERCAJA
o
01/01/2023 02:00
“
IBERCAJA
o
08/01/2023 00:33
“
IBERCAJA
o
08/01/2023 02:36
“

IBERCAJA
- Claim directed, via email dated 29/03/23, to the respondent. In said email, it is stated that the inquiry of their personal data is being conducted monthly in an illegitimate manner, as they have no credit rights since 23/02/22. Furthermore, they request that these practices cease immediately.
- Response received by the claimant, via email dated 29/03/23, in which it is indicated that their personal data has been blocked as provided in Article 32 of the LOPDGDD.
- Report from the Central Risk Information of the Bank of Spain, dated 21/02/23, regarding the "aggregate risk report" of the claimant between May 2022 and January 2023, highlighting the operations corresponding to May 2022:
o
"…Data of the operations corresponding to personal Risk Disposed Amounts in units of euros: XXXXXXXXXXXXXXXX… Data transfer of this operation suspended by application of Article 66 of Law 44/2002 of November 22. IBERCAJA BANCO, S.A…"
SECOND: On 13/11/23, in accordance with the pre-admission mechanism for claims submitted to the AEPD, as provided in Article 65.4 of the LOPDGDD, which consists of forwarding them to the data protection delegates designated by the controllers or processors, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, the claim was forwarded to the respondent for analysis and response within one month.
The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was notified on 13/11/23, as evidenced in the file.
THIRD: On 14/12/23, this Agency received a written response from the respondent to the information request made, in which it is stated that:
- The relationship with the claimant was a consequence of a mortgage loan formalized on 30/05/06, the non-payment of which led to a judicial debt collection procedure on 28/06/18. Subsequently, this judicial process resulted in a provisional execution. However, both procedures were resolved through extrajudicial satisfaction after the signing of a settlement agreement between the parties on 23/02/22. The resolutions issued in the context of these procedures were last notified on 27/04/22.
- In the settlement agreement signed between the parties, Ibercaja agreed to make a partial write-off of the debt, as the value of the mortgaged property transferred in payment did not cover the total amount owed. After signing this agreement, Ibercaja proceeded to regularize the loan situation, removing the related information from the EXPERIAN-BADEXCUG file and the CIRBE. The definitive cancellation was materialized on 29/05/23 by blocking the corresponding data in its database, as stated.
THIRD: On 17/12/23, in accordance with Article 65.5 of the LOPDGDD, the claim submitted was admitted for processing (AT/05840/2023).
FOURTH: On 20/12/23, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection in file AT/05840/2023, agreeing to archive the claim due to the lack of reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, and consequently, the opening of a sanctioning procedure was not warranted. The resolution was notified to the appellant on 20/12/23, as evidenced in the file.
FIFTH: On 17/01/24, the claimant filed an optional appeal for reconsideration (RR/00038/2024) against the resolution issued in file AT/05840/2023, in which they express their disagreement with the contested resolution, requesting that the processing of the initial claim submitted to the AEPD continue, based on the assertion that the respondent had made repeated inquiries into their delinquency data in the BADEXCUG file, without having any contractual relationship with it, and that the reports and documentation submitted were not properly considered, as they had key evidentiary value regarding what was being stated.
SIXTH: On 24/07/24, the Director of the Data Protection Agency issued a favorable resolution of the reconsideration appeal (RR/00038/2024), based on the fact that the respondent has not demonstrated the lawfulness of the accesses to the claimant's personal data, made in the BADEXCUG credit information system after the termination of their contractual relationship.
LEGAL GROUNDS
I.

Competence
In accordance with the provisions of Articles 58.2 and 60 of the GDPR and the provisions of Articles 47, 48.1, 64.2, and 68.1 and 68.2 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Likewise, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."
II.
Unfulfilled Obligation
We must begin by recalling that Article 4 of the GDPR defines, in its paragraphs 1 and 2, the terms "personal data" and "processing" as follows:
"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;
"2) 'processing': any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;
For its part, the "Principle of lawfulness" in the processing of personal data implies that any processing of data must have a legal basis that justifies it, that is, it must be in accordance with a law and cannot be carried out arbitrarily or unlawfully (Article 5.1.a) of the GDPR), which requires that it be evidenced that the data subject consented to the processing of their data or that any other legitimizing cause established in Article 6 of the GDPR applies. This is:

"1. Processing shall be lawful only if at least one of the following conditions is met: a) the data subject has given consent to the processing of their personal data for one or more specific purposes; b) processing is necessary for the performance of a contract to which the data subject is party or for the implementation at the request of the data subject of pre-contractual measures; c) processing is necessary for compliance with a legal obligation to which the controller is subject; d) processing is necessary to protect the vital interests of the data subject or of another natural person; e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child…"
In this regard, and applying it to the case at hand, paragraph 20.1.e) of the LOPDGDD, regarding "Credit information systems," establishes that:
"1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed

lawful when the following requirements are met:
e) That the data relating to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts.
When the right to restrict the processing of the data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system shall inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing specific data regarding

those who would have exercised the right, while the request of the affected party is resolved.
In the present case, from the information and documentation in the file, it is evident that there was a contractual relationship between the claimant and the defendant through a mortgage loan, the non-payment of which led to a judicial procedure for debt recovery and subsequently a provisional execution procedure. Both procedures were concluded on 23/02/22 due to extrajudicial satisfaction as a result of the signing of a settlement agreement before a notary, as stated in the certificate dated 23/02/22, issued by the defendant, which certifies, among other matters, that the debtors proceeded to transfer the mortgaged property to a company in which Ibercaja has a stake, as payment of the debt at its market value. In this agreement, the defendant granted a payment letter and total discharge of the debt, expressly waiving the right to exercise any further claim regarding it and desisting from any judicial or extrajudicial actions.
On the other hand, according to the reports from the Central Risk Database of the Bank of Spain (CRBE), the regularization of the mortgage contract concluded in May 2022, being this the last month in which the defendant entity declared the risk derived from the contract. Despite this, according to the claim submitted and the documentation provided by the claimant, it is confirmed that the defendant entity accessed the personal data of the claimant contained in the financial solvency files Badexcug-Experian on at least 47 occasions after the termination of the contractual relationship on 23/02/22. These accesses took place between March 2022 and January 2023.
The defendant entity, in its response to the transfer of proceedings, justified these accesses by stating that, within the framework of the settlement agreement, the entity had made a partial write-off of the debt, as the value of the transferred property did not cover the total amount owed. It also stated that, after signing the agreement, it proceeded to regularize the situation of the loan, removing the information from both the EXPERIAN-BADEXCUG files and the CIRBE, until the definitive cancellation of the operation by blocking the information in its database on 29/05/23. However, such statements have not been supported by documentation that would invalidate the present claim.
Well, we have seen that the processing of data requires the existence of a legal basis that legitimizes it, as we see in Article 6.1 of the GDPR, which, apart from consent, establishes other possible bases that can legitimize the processing of data without the need for the authorization of its owner, such as when it is necessary for the execution of a contract in which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that these interests do not prevail over the interests or fundamental rights and freedoms of the affected party that require the protection of such data or when it is necessary for compliance with a legal obligation.

legal obligation applicable to the data controller, to protect the vital interests of the data subject or another natural person or for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the data controller.
And in the particular case, when referring to the processing of personal data in the context of credit information systems, Article 20.1.e) of the LOPDGDD presumes lawful processing of personal data of an individual when they are consulted in the database of the solvency file by someone who has a contractual relationship with the affected party that involves the payment of a monetary amount or when the affected party has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing.
Consequently, the consultation of the personal data of the claimant in the solvency file without a valid contractual relationship or any other legitimate cause justifying such access could constitute an infringement attributable to the entity being claimed, for violation of Article 6.1 of the GDPR in relation to Article 20.1.e) of the LOPDGDD.
VII.
Typification and qualification of the infringement
If confirmed, the aforementioned infringement of Article 6.1 of the GDPR could imply the commission of the infringements typified in Article 83.5.a) of the GDPR, which considers that the infringement of "the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9" is punishable, according to paragraph 5 of the aforementioned Article 83 of the cited Regulation, "with administrative fines of up to €20,000,000 or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount."
The LOPDGDD in its Article 71 states that:
"Infringements are constituted by the acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."
And Article 72.1.b considers, for the purposes of prescription, that they are "very serious":
1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that involve a substantial violation of the articles mentioned therein and, in particular, the following: (…) b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 being met. (…)
VIII
Proposal for sanction
For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment from

Agreement to initiate sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR, which states:
“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j).
In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:
a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered;
b) the intentionality or negligence in the infringement;
c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
g) the categories of personal data affected by the infringement;
h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;
i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;
k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."
Thus, according to these provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement classified in Article 83.5.a) and Article 6.1 of the GDPR, for which the respondent is held responsible, an initial assessment considers the following concurrent factors:
- The duration of the infringement, as it has been established that the respondent accessed the personal data of the claimant contained in the Badexcug-Experian solvency files on at least 47 occasions after the termination of the contractual relationship on 23/02/22, occurring over a period of 9 months, between March 2022 and January 2023. (art. 83.2.a of the GDPR).
- The high connection of the infringer's activity with the processing of personal data. - The level of establishment of the entity and the activity it develops is considered, in which personal data of millions of data subjects are involved. This circumstance determines a greater

degree of demand and professionalism and, consequently, the responsibility of the entity being claimed in relation to the processing of data, (Article 76.2.b of the LOPDGDD in relation to Article 83.2.k).

- The intentionality or negligence in the infringement, as the entity being claimed accessed the personal data of the claimant up to 47 times without the corresponding legitimacy, without the degree of diligence that the data controller is obliged to exercise in compliance with the obligations imposed by data protection regulations, as cited in the SAN of 17/10/2007. Although it was issued before the validity of the GDPR, its pronouncement is extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an adequate level of diligence, specified that "(...). The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard" (art. 83.2.b GDPR).

- Any previous infringement committed by the data controller or the data processor, taking into account the resolution dated 30/01/23 issued by the Directorate of the Data Protection Agency, in the sanctioning procedure PS/00241/2022, (art. 83.2.e.- GDPR).

The balance of the circumstances contemplated in arts. 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in art. 6.1 of the GDPR, allows for an initial sanction of 300,000 euros (three hundred thousand euros).

IX.

Adoption of measures.

The corrective powers that the GDPR attributes to the AEPD as the supervisory authority are related in its Article 58.2, sections a) to j).
If the infringement is confirmed, the controller may be required to adopt appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame…”.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in art. 83.2 of the GDPR.
The text of this agreement establishes what the facts have been that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the types of procedures, mechanisms, or specific instruments for implementing them correspond to the sanctioned party, as it is the one who fully knows its organization and must decide, based on proactive responsibility and risk approach, how to comply with the GDPR and the LOPDGDD.
However, in the present case, it is noted that the measure to be adopted would be to take those measures within a period of 6 months that ensure that the processing of personal data has the necessary legitimacy, fulfilling the requirements of Article 6.1 GDPR.
It is warned that failure to comply with the order imposed by this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of a further sanctioning administrative procedure.
Therefore, in light of the above, by the Director of the Spanish Data Protection Agency,
IT IS AGREED:
FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity IBERCAJA BANCO, S.A. with CIF: A99319030, for the alleged infringement of Article 6.1 of the GDPR, classified in Article 83.5.a) of the GDPR.
SECOND: TO APPOINT Mr. B.B.B. as Instructor, and Mr. C.C.C. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of arts. 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).
THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.
FOURTH: THAT for the purposes provided in art. 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 300,000 euros (three hundred thousand euros), without prejudice to what results from the instruction of this file.
FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity IBERCAJA BANCO, S.A., granting it a hearing period of ten working days to make allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).
In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for making allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 60,000 euros. With the application of this reduction, the sanction would be set at 240,000 euros, resolving the procedure with the imposition of this sanction.
Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 60,000 euros. With the application of this reduction, the sanction would be set at 240,000 euros, and its payment will imply the termination of the procedure.
The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations regarding the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 180,000 euros (one hundred eighty thousand euros).
In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.
If you choose to proceed with the voluntary payment of any of the amounts indicated above (240,000 euros or 180,000 euros), you must make it effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.
You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.
The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.
Mar España Martí
Director of the Spanish Agency for Data Protection.
>>
SECOND: On October 16, 2024, the respondent has proceeded to pay the sanction in the amount of 180,000 euros by utilizing the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.
THIRD: The payment made, within the period granted to formulate allegations regarding the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.
FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may

“order the controller or processor to ensure that the processing operations are compliant with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe…”.
Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.
Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in Sanctioning Procedures” provides as follows:
“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”
In accordance with the above,
the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO DECLARE the termination of procedure EXP202315853, in accordance with the provisions of Article 85 of the LPACAP.
SECOND: TO ORDER IBERCAJA BANCO, S.A. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within a period of 6 months from the date this resolution becomes final and enforceable.
THIRD: TO NOTIFY this resolution to IBERCAJA BANCO, S.A.
In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.
Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative

Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-151024

Mar España Martí

Director of the Spanish Agency for Data Protection